

25STCV12645 25STCV12645

County: los-angeles

Division: Civil Law and Motion

Department: 309

Hearing date: 2026-09-23

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Case Number: 25STCV12645 Hearing Date: September 23, 2026 Dept: 309

Superior Court of California

County of Los

Angeles

DEPARTMENT 309

TENTATIVE RULING

SIAMAK TAHERIAN

vs.

CLW FOODS, LLC

Case

No.: 25STCV12645

Hearing Date: September 23, 2026

Defendant's motion for a judgment on the pleadings is GRANTED.

On 4/30/2025, Plaintiff Siamak

Taherian (Plaintiff) filed suit against Defendant CLW Foods, LLC (Defendant),

alleging: (1) premises liability; and (2) general negligence.

On 5/18/2026, Defendant moved for a

judgment on the pleadings.

Discussion

Defendant argues that Plaintiffs' claim is barred by the workers' compensation exclusivity rule.

After review, the Court agrees. The Workers' Compensation Act provides an employee's exclusive remedy against an employer for injuries arising out of and in the course of employment. Here, Plaintiff's claim is based on allegations that he suffered an injury after slipping and falling on a staircase while working for Defendant. Indeed, Plaintiff already filed a workers compensation claim related to the injury. Accordingly, the Court finds the injury clearly falls within the scope of California's Workers' Compensation Act. (Lab. Code §3600, subd. (a)(1)-(9).)

Based on the foregoing, Defendant's motion for a judgment on the pleadings is granted.

It is so ordered.

Dated:
September , 2026

Hon. Jon R. Takasugi

Judge of the
Superior Court

Parties who intend to submit on this tentative must send an email to the court at smcdept17@lacourt.org by 4 p.m. the day prior as directed by the instructions provided on the court website at www.lacourt.org. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If all parties to a motion submit, the court will adopt this tentative as the final order. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. For more information, please

contact the court clerk at (213) 633-0517.